(2)

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA (CAA)/79(CHE) 2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

of

SAMC SERVICES PRIVATE LIMITED
[CIN: U67190TN2004PTC155690]
Registered Office at:
No. 21, Patullos Poad,
Chennai – 600 002

... 1st Applicant Company / Transferor Company

And

SUNDARAM ALTERNATE ASSETS LIMITED
[CIN: U65990TN2018PLC120641]
Registered Office at:
No. 21, Patullos Poad,
Chennai – 600 002

... 2nd Applicant Company / Transferee Company

And

Their Respective Shareholders and Creditors

*Order Pronounced on **06th March, 2023***

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JUSTICE (RETD.) RAMALINGAM SUDHAKAR, PRESIDENT

SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Pawan Jhabakh, Advocate

ORDER

Per: **JUSTICE (RETD.) RAMALINGAM SUDHAKAR, PRESIDENT**

Under consideration is a joint Company Application filed by the Applicant Companies, namely **SAMC SERVICES PRIVATE LIMITED** (for brevity "Transferor Company") and **SUNDARAM ALTERNATE ASSETS LIMITED** (for brevity "Transferee Company") under section 230 - 232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also annexed as "Annexure – A" to the Application.

2. The Applicant Companies in this Company Application has sought for the following reliefs in relation to their respective meeting(s);

	EQUITY SHAREHOLDERS	**SECURED CREDITORS**	**UNSECURED CREDITORS**
TRANSFEROR COMPANY	*To dispense with*	NIL	*To dispense with*
TRANSFEREE COMPANY	*To dispense with*	NIL	*To dispense with*

3. In relation to the 1st Applicant Company, an affidavit in support of the above application is sworn by the Authorised Signatory Mr. Ajith Kumar and in relation to the 2nd Applicant Company, an affidavit in support of the above application is sworn by the Authorised Signatory Mr. K Rajagopal. The Board Resolutions authorising the said Authorised Signatories are placed on record as "Annexure – F1 & F2". The Registered Office of the Applicant Companies are at No. 21, Patullos Poad, Chennai – 600 002 which is within the purview of Registrar of Companies, Chennai and thus within the territorial jurisdiction of the this Bench.

4. **SAMC SERVICES PRIVATE LIMITED**
(1ST APPLICANT COMPANY / TRANSFEROR COMPANY)

(i) There are 7 (Seven) Equity Shareholders and list of shareholders to this effect is placed at page 238 and consent affidavits given by all the Equity Shareholders constituting 100% of the total value have been obtained and placed at page nos. 239 to 259 of the typed set filed with the application.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 287 of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There is 1 (One) Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is

placed at page no. 288 - 289 of the typed set filed with the application and consent by way of Affidavit given the said Unsecured Creditor have been obtained and placed at pages 290 to 292 of the typed set filed with the application and sought for dispensation with holding of meeting.

5. **SUNDARAM ALTERNATE ASSETS LIMITED (2ND APPLICANT COMPANY / TRANSFEREE COMPANY)**

(iv) There are 7 (Seven) Equity Shareholders and list of shareholders to this effect is placed at page 265 and consent affidavits given by all the Equity Shareholders constituting 100% of the total value have been obtained and placed at page nos. 266 to 286 of the typed set filed with the application.

(v) There is NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 294 of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(vi) There is 1 (One) Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 295 – 296 of the typed set filed with the application and consent by way of Affidavit given the said Unsecured Creditor have been obtained and placed at pages 297 to 299 of the typed set filed with the application and sought for dispensation with holding of meeting.

6. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

7. It is stated that the Transferor Company is a Private Limited Company incorporated under the provisions of Companies Act, 1956 on 11.10.2004. The Authorized Share Capital of the Transferor Company is as follows:

PARTICULARS	**AMOUNT (IN INR)**
Authorized Share Capital	
23,00,00,000 Equity Shares of Rs.10 each	2,30,00,00,000
Total	**2,30,00,00,000**
Issued, Subscribed and Paid – up Share capital	
16,10,00,000 Equity Shares of Rs.10 each	1,61,00,00,000
Total	**1,61,00,00,000**

8. It is stated that the Transferee Company is a Public Limited Company incorporated under the provisions of Companies Act, 2013 on 24.01.2018. The Authorized Share Capital of the Transferee Company is as follows:

PARTICULARS	**AMOUNT (IN INR)**
Authorized Share Capital	
6,00,00,000 Equity Shares of Rs.10 each	60,00,00,000
Total	**60,00,00,000**
Issued, Subscribed and Paid – up Share capital	
39,00,00,000 Equity Shares of Rs.10 each	39,00,00,000
Total	**39,00,00,000**

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts of the Transferor and Transferee Company for the year ended 31.03.2022.

10. The Board of Directors of the Transferor and Transferee Company vide meeting(s) held on 12.08.2022 and 04.08.2022 respectively has unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the Applicant Companies.

11. The Appointed date as specified in the Scheme Shall be **01.04.2022**.

12. The Statutory Auditors of the Transferor and Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors of the Transferor and Transferee Company issued in this regard is placed as "Annexure R1 & R2" of the typed set filed along with the Application respectively.

13. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO THE TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are 7 (Seven) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there is NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there is 1 (One) Unsecured Creditor in the Company whose consent by way of an Affidavit have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

B. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are 7 (Seven) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there is NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there is 1 (One) Unsecured Creditor in the Company whose consent by way of an Affidavit have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

14. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**.

- Sd -

SAMEER KAKAR
MEMBER (TECHNICAL)

- Sd -

JUSTICE RAMALINGAM SUDHAKAR
PRESIDENT

V.Shreekumar